

Citizenship

(Part II: Article 5-11)

CONSTITUTIONAL PROVISIONS RELATED TO CITIZENSHIP

- **Articles 5 to 11:** Located in **Part II** of the Constitution, these provisions identify those who became citizens of India at its commencement on **January 26, 1950**. They do not contain permanent or detailed rules on citizenship.
 - **Article 5:** Citizenship at the time of the Constitution's commencement. People who were born in India or have been residing in India for 5 years immediately before the commencement of the constitution.
 - **Article 6:** Citizenship of those who migrated from **Pakistan** to India and either of his/her parents or grandparents were born in undivided India.
 - **Article 7:** Citizenship of those who migrated to **Pakistan** and later returned to India and had been a resident for six months.
 - **Article 8:** Citizenship for **Persons of Indian Origin** residing abroad.
 - **Article 9:** **Termination of citizenship** upon voluntary acceptance of another country's citizenship.
 - **Article 10:** Continuance of citizenship rights unless Parliament enacts a law.
 - **Article 11:** Parliament's authority to regulate citizenship through laws.
- **Parliament's Power:** Parliament is empowered to legislate on matters related to citizenship.
- **Comparison:** Unlike the USA and Australia, which have **dual citizenship**, India ensures uniform political and civil rights across the nation without discrimination.
- **Exceptions:**
 - **Residence Requirement for Employment:** Under **Article 16**, Parliament can impose residential qualifications for specific jobs. The **Public Employment (Requirement as to Residence) Act, 1957** allowed states like **Andhra Pradesh & Telangana (under Article 371 D)**, **Himachal Pradesh**, **Manipur**, and **Tripura** to set such requirements.
 - **Discrimination Based on Residence:** While **Article 15** prohibits discrimination based on various factors, states can grant special benefits to residents (e.g., educational fee concessions).
 - **Protection of Tribal Interests:** **Article 19** restricts outsiders from settling in tribal areas to protect their culture and livelihoods.
- **Allegiance:** Citizens owe allegiance only to the **Union**, with no separate state citizenship.
- **Eligibility for President:**
 - **India:** Both **citizens by birth** and **naturalised citizens** can hold the office of President.
 - **USA:** Only **citizens by birth** are eligible for the office of President. **[UPSC 2021]**
- **Tribunal Empowerment:**
 - The **Ministry of Home Affairs (MHA)** has amended the **Foreigners (Tribunals) Order, 1964**.
 - **District Magistrates** in all States and Union Territories can now establish tribunals (quasi-judicial bodies) to determine if individuals residing illegally in India are classified as foreigners.
 - **Certain Offices require Indian citizenship:** Judges of Supreme Court, President of India, VP of India, Governor, MLAs/MPs, Attorney General of India, Advocate General of India.

SINGLE CITIZENSHIP IN INDIA

- **Definition:** The Indian Constitution establishes **single citizenship like Canada**, meaning all citizens are Indian citizens, regardless of their state of residence. **[UPSC 2021]**

COMPARISON BETWEEN CITIZENS AND ALIENS

Citizens	Aliens
● Definition: Full members of the Indian State; owe allegiance to India. ● Their acquisition and loss of citizenship is governed by the Citizenship Act, 1955 ● Rights: Enjoy all civil and political rights including appointments to key public offices in India. ● Fundamental Rights: Exclusive rights under Articles 15, 16, 19, 29, and 30. [UPSC 2021] ● Duties: Obligated to pay taxes, respect the national flag and anthem, and defend the country.	● Definition: Citizens of other states or countries. ● Rights: Do not enjoy all civil and political rights. ● Categories: ○ Friendly Aliens: Subjects of countries with cordial relations with India; enjoy more rights. ○ Enemy Aliens: Subjects of countries at war with India; have lesser rights, such as no protection against arrest and detention (Article 22). ● Rights of Aliens ○ General Rights: All rights except Articles 15, 16, 19, 29, and 30. ○ Enemy Aliens: Lack protection against arrest and detention (Article 22).

THE CITIZENSHIP ACT, 1955

- Governs **acquisition (5 ways) and loss of Indian citizenship (3 ways)** post-Constitution commencement. This has been amended many times subsequently in 1957, 1960, 1985, 1986, 1992, 2003, 2005, 2015 and 2019. Initially included Commonwealth citizenship, removed by the Citizenship (Amendment) Act, 2003.

ACQUISITION OF CITIZENSHIP

1. By Birth (Section 3)

- **Born in India:**
 - **(Jan 26, 1950 - July 1, 1987):** Automatic citizenship, regardless of parents' nationality.
 - **(Post-Jul 1, 1987):** Citizenship if at least one parent is an Indian citizen.
 - **(Post-Dec 3, 2004):** Citizenship if both parents are citizens or one is a citizen and the other is not an illegal migrant.
- **Exclusions:** Children of foreign diplomats and enemy aliens cannot acquire citizenship by birth.

2. By Descent (Section 4)

- **Born Outside India:**
 - **(Jan 26, 1950 - Dec 10, 1992):** Citizenship if the father was an Indian citizen.
 - **(Post-Dec 10, 1992):** Citizenship if either parent is an Indian citizen.
 - **(Post-Dec 3, 2004):** Birth must be registered at an Indian consulate within one year or with Central Government permission afterward.

3. By Registration (Section 5)

- **Eligibility:** Non-illegal migrants can apply.
 - Must take an oath of allegiance and reside in India for **7 years** prior to application.

4. By Naturalization (Section 6)

- **Requirements:** Continuous residence in India for **12 years** (11 out of the last **14 years**).
 - Must renounce other citizenship upon acceptance.
 - Must have good character and knowledge of a language in the Eighth Schedule.

5. By Incorporation of Territory (Section 7)

- When a foreign territory becomes part of India, the government specifies citizenship eligibility.
- **Example:** The Citizenship (Pondicherry) Order, 1962, granted Indian citizenship to Pondicherry residents.

LOSS OF CITIZENSHIP

The **Citizenship Act (1955)** prescribes three ways, whether acquired under the Act or prior to it under the Constitution

1. Renunciation of Citizenship (Section 8)

- **Process:** A citizen of full age can declare renunciation, which is registered by the authorities.
- **Effect:** Citizenship ceases upon registration; the process can be withheld during wartime.
- **Minor Children:** Children of the renouncing citizen also lose citizenship but can reclaim it upon turning 18 within one year.

2. Termination of Citizenship (Section 9)

- **Automatic Loss:** Voluntarily acquiring another country's citizenship results in automatic loss of Indian citizenship.
- **Exception:** This does not apply during wartime.

3. Deprivation of Citizenship (Section 10):

Citizenship can be revoked by the government if:

- **Fraud:** Acquired through deceit.
- **Disloyalty:** Demonstrated disloyalty to the Constitution.
- **Unlawful Trade:** Engaged with enemies during wartime.

- **Criminal Record:** Imprisoned for at least two years within five years of gaining citizenship.
- **Continuous Residence:** Resided outside India for seven years, with exceptions for students, government employees, international organisation members, or those registered to retain citizenship at consulates.

CITIZENSHIP AMENDMENT ACT, 2019

Definition of Illegal Migrants

- **Definition:** A foreigner entering India without valid documents or overstaying is deemed an illegal migrant.
- **Prohibition:** Illegal migrants cannot acquire Indian citizenship.

Citizenship for (Persecuted Migrants)

- **Exemptions:** Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians from Afghanistan, Bangladesh, and Pakistan entering before **December 31, 2014**, are exempt.
- **Reduced Requirement:** Citizenship requirement for these groups is **5 years** instead of **11 years**.

Exclusions

- **Tribal Areas:** Exemptions do not apply to tribal areas of Assam, Meghalaya, Mizoram, and Tripura (Sixth Schedule).
- **Inner Line Areas:** Also exempt are regions under the **Bengal Eastern Frontier Regulation, 1873** (e.g., Arunachal Pradesh, Mizoram, Manipur, and Nagaland).

COMPARISON BETWEEN NRI, PIO, AND OCI CARDHOLDER

Category	Non-Resident Indian (NRI)	Persons of Indian Origin (PIO)	Overseas Citizens of India (OCI) Cardholder
Definition	Indian citizen residing outside India, holding an Indian passport	Person whose ancestors were of Indian nationality and currently hold foreign citizenship	Registered under the Citizenship Act, 1955
Visa Requirements	No visa required for India	Visa required for entry into India	Can visit India without a visa for life
Registration with Local Police	Not required unless stay exceeds 180 days	Required if stay exceeds 180 days	Not required to register with police authorities
Benefits	Benefits available to Indian citizens, subject to government notifications	No specific benefits	Multiple lifelong visas, exemption from FRRO registration, parity with NRIs (excluding agriculture/plantation), intercountry adoption, parity in domestic airfare
Activities in India	All activities can be undertaken	Activities as per visa obtained	All activities except research (requires special permission)
Citizenship Eligibility	Indian citizen	Must be ordinarily resident in India for 7 years to apply for registration	After 5 years as an OCI and 12 months residence, eligible for Indian citizenship

Note: The Person of Indian Origin (PIO) card scheme has been withdrawn by Government of India and has been merged with Overseas Citizen of India (OCI) card scheme w.e.f. 9th January 2015.

CANCELLATION OF OCI REGISTRATION

The central government may cancel OCI registrations for:

- **Fraud:** If obtained fraudulently.
- **Criminal Record:** If sentenced to 2+ years within 5 years.
- **National Security:** If required for sovereignty and security.
- **Legal Violations:** If laws are breached. If the person had unlawfully communicated or traded with an enemy alien.
- **Hearing Required:** OCI holders must be given a chance to be heard before cancellation.

